

Parliamentary Evidence and the Welsh Constitutional Framework

Post-Publication Evidence Note No. 1

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The first of a series recording how evidence published after a paper's completion bears on propositions already in print. Two select committee reports produced independently of the framework, HC 137 on prisons, probation and rehabilitation in Wales, and HC 229 on community energy, are assessed against eleven propositions drawn from the Welsh Constitutional Framework. Two propositions are qualified, four are not reached at all, and none of the findings requires the published framework to be revised.

Evidence note. Published September 2026.

An evidence note on A Framework for Welsh Constitutional Development. It records how parliamentary evidence published after that paper's completion bears on its propositions, and revises nothing. Read the Framework first.

Completed: July 2026

Framework under assessment: Welsh Constitutional Framework (May 2026)

Evidence period: May 2026 to July 2026

Evidence sources: HC 137; HC 229

Method: Proposition-based post-publication evidence assessment

Status: Complete text.

1. Purpose and method

This note does not revise the Welsh Constitutional Framework. It records how parliamentary evidence published after that paper's completion bears upon propositions already published, distinguishing between evidence that is consistent with those propositions, evidence that qualifies them, and evidence that does not reach them.

The framework was completed and circulated in May 2026, and published on the project website on 13 June 2026. It is closed. The date that governs this assessment is completion, because that is when the propositions were fixed. One of the sources assessed below entered the public domain between those two dates, making the distinction methodologically significant rather than merely bibliographic. Nothing here amends the framework's text, and no proposition is restated in a form the framework did not use. Where later evidence sits awkwardly against a published claim, the note records the qualification and leaves the claim standing. A paper quietly adjusted whenever new material arrives cannot afterwards be tested against anything.

The framework declined to recommend between the three constitutional options identified by the Independent Commission on the Constitutional Future of Wales, on the ground that the choice belongs to citizens and their representatives. This note adopts the same position. A finding that qualifies a proposition is not an argument against any constitutional option. Equally, a finding that adds evidence to a proposition is not an argument in favour of one.

The standard applied throughout is consistency, not proof. No source cited here validates or confirms anything the framework claimed. Select committees conduct inquiries for their own purposes, on their own timetables, and reach conclusions the framework had no part in shaping. Where their findings and the framework's propositions describe the same institutional feature, that convergence is worth recording precisely because they were produced independently of one another. It remains convergence rather than confirmation.

Each source is assessed on two separate axes. Bearing records whether a source reaches a proposition at all, as direct, indirect, or none. Effect records what it does when it reaches it, as consistent with, adds evidence, or qualifies. The two are kept apart because a source may bear directly on a general institutional proposition while bearing only weakly on the Welsh particulars, and collapsing the axes

would obscure the difference. Effect codes are not mutually exclusive; a finding can be consistent and add evidence at once.

Both sources were produced independently of the framework. Neither committee had sight of it, and neither responds to it.

A further field records the prior corpus position on each proposition, so that a reader can distinguish a finding that is new to the corpus from one that newly evidences what the corpus already held. The corpus is not treated as a source. Once the framework supplies the propositions under test, it cannot also serve as evidence for them.

The body of the note is organised by finding rather than by proposition, because several propositions are not reached by this evidence at all and a proposition-by-proposition body would report that at length. No bearing is a result rather than an absence of one, and the propositions it applies to are set out in Section 7. The complete assessment grid is provided at Appendix A.

2. The evidence base

Two sources are assessed. Both postdate the completion and private circulation of the framework in May 2026, although the first of them was published four days before the framework itself appeared on the project website.

The first is the Welsh Affairs Committee's report *Jagged Justice: Prisons, Probation and Rehabilitation in Wales*, Second Report of Session 2026-27, HC 137, ordered to be printed on 3 June 2026 and published on 9 June 2026 under the chairmanship of Ruth Jones MP. The inquiry was launched on 5 February 2025 and received twenty-nine written submissions. It held five oral evidence sessions in Westminster, a private roundtable with the governors of Wales's five prisons and of the two English prisons holding the majority of Welsh women, and visits to HMP Eastwood Park, HMP Berwyn, HMP and YOI Parc, and the North Wales Women's Centre. An interim report, *The Future of HMP Parc*, was published as the Third Report of Session 2024-26, HC 702, in March 2026.

Two features of HC 137 bear on how it is used here. The committee concluded its inquiry before the Senedd election of 7 May 2026, so its references to Welsh Government evidence and strategy relate to the predecessor administration led by Baroness Eluned Morgan. And the committee accepted the UK Government's position that the prison system must stabilise before systemic change is introduced. The report documents institutional weakness and recommends institutional repair. It does not argue for the devolution of justice, and it is not treated here as though it did.

The second is the Energy Security and Net Zero Committee's report *Get connected: How community energy can turbocharge the transition*, First Report of Session 2026-27, HC 229, ordered to be printed on 3 June 2026 and published on 17 June 2026 under the chairmanship of Bill Esterson MP. That inquiry was launched in November 2024, received more than one hundred and sixty written submissions, and questioned thirty-two witnesses across five oral evidence sessions between March 2025 and January 2026.

HC 229 is not a report about Welsh constitutional development. Its subject is the ownership of energy generation across the United Kingdom, and Wales appears in it incidentally. It is included because its findings on institutional mandate reproduce, in an unrelated policy field, a pattern the framework

describes. Its bearing on propositions about Welsh competence specifically is weak, and the matrix records that.

Both reports are published under the Open Parliament Licence.

These two sources are not a survey. They are the material that came to hand between June and July 2026, and no search was conducted for evidence that would tell against the framework's propositions. The purpose of this note is to record the effect of subsequent evidence as it arose, not to conduct a fresh literature review. That is a limit on what the note can claim, and it is stated again in Section 9.

3. Assessment protocol

The following rules govern the assessment and are stated before it begins.

1. Propositions are assessed as published. The wording tested is the wording the framework used, located by section, and not a restatement that later evidence would fit more comfortably.
2. No proposition is rewritten in light of later evidence. Where a published claim proves imprecise, the imprecision is recorded as a finding rather than repaired.
3. Each source is first read for what it set out to do, and only then for what it bears upon. A committee's own purpose, remit and stated conclusions are established first, so that its findings are not recruited to an argument it declined to make.
4. Each source is assessed independently against each proposition before any synthesis. Where two sources converge, the convergence is reported only after both have been coded separately, so that the second is not read through the first.
5. No bearing is an expected outcome. A source that does not reach a proposition is recorded as not reaching it, and that result carries the same status as any other. The assessment is not designed to return a finding on every proposition.
6. Qualification of a proposition does not imply revision of the framework. Where a finding qualifies a published claim, the qualification is recorded. Nothing in Sections 5 to 7 should be read as amending the framework. Whether any supporting paper should change is considered separately in Section 8.

4. Propositions under test

Eleven propositions are drawn from the framework. Each is given in the wording the framework used, with the sections it comes from. Where a proposition synthesises more than one passage, that is stated and the synthesis identified, so that a reader can see the published language before reading any finding about it.

The prior corpus position records what the published supporting papers already said on the same point, with publication dates, so the reader can see how far each position predates the evidence assessed in Sections 5 to 7. Where the margin is short it is stated.

Proposition 1. Constitutional durability follows institutional capability rather than preceding it. The framework adds that institutional capability does not determine constitutional preference, which

remains a democratic question for Welsh citizens, but that durable constitutional settlements are more likely where institutional capability already exists.

Framework basis: Executive summary; Section 1; Conclusion.

Prior corpus position: Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) states the limit rather than the thesis. It declines the developmental reading expressly, on the ground that any suggestion that constructing machinery leads on to greater competence, or that institutional construction matures into constitutional advancement, would be a developmental claim, predictive and unproven. The corpus therefore supports proposition 1 only in its correlational form and expressly rejects its causal form.

Proposition 2. Welsh constitutional instability since 1999 has arisen because constitutional change repeatedly outran the institutional capacity needed to make it work, with successive settlements proving unstable because institutional development lagged behind constitutional change.

Framework basis: Executive summary; Section 1.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026) locates present pressures where constitutional responsibility, political accountability, administrative authority and institutional capacity no longer align cleanly together.

Proposition 3. Institutional assumptions formed under the conferred-powers settlement have persisted beyond the transition to reserved powers.

Framework basis: Section 1. The framework does not assert this in its own voice. It reports Evans (2024) as documenting three dispensations each preserving what Evans terms a conferred powers mindset even after the 2017 shift to a reserved powers model. The proposition is therefore tested as a reported scholarly characterisation the framework adopts, not as an original claim.

Prior corpus position: None identified in the published supporting papers.

Proposition 4. Capability that exists serves Wales whatever the constitutional outcome; capability that does not exist would constrain Wales's options regardless of public preference.

Framework basis: Section 1.

Prior corpus position: Two papers state the underlying distinction more fully than the framework does. Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) holds throughout to the difference between the capacity to legislate a framework and the capacity to operate one. Comparative Fiscal Capacity (published 16 June 2026) opens by stating that a power on paper is not the same as the capacity to use it, that Wales can hold a competence and still lack the institution, the data, the forecasting or the delivery system that would make it work, and that where the two diverge the divergence is the finding. Its method annex makes this a coding rule: a cell must pass both a competence test and a capacity test.

Proposition 5. Two timelines operate. Devolution of specific powers is incremental constitutional development on a Senedd-term timescale, with justice and policing, broadcasting and expanded tax powers named as examples. Changes to Wales's fundamental constitutional status proceed on a horizon properly measured in five to fifteen years, governed by demonstrated institutional and governance capacity and durable public opinion.

Framework basis: Section 1.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026) concludes that Westminster-side development is unlikely to proceed as a single comprehensive settlement and is more likely to involve cumulative institutional adjustment across different fields.

Proposition 6. Institutional capability can be developed largely within existing devolved competence, although the effectiveness of that capability may remain dependent upon reserved funding or institutional arrangements.

Framework basis: Sections 3 and 9.3, read with 5.2. This proposition is a synthesis and the published wording differs from it in an important respect. Section 9.3 states that the framework's institutional capability development operates within current devolved powers and is therefore robust to variation in UK Government posture. Section 5.2 states that Welsh Government operates under the Welsh fiscal framework with limited borrowing powers, dependent on UK fiscal settlement decisions. The dependency clause in the proposition comes from 5.2; the claim tested in Section 6 is the stronger one at 9.3, and it is stated here so that the qualification is read against the published sentence rather than against the smoothed one.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026) already documents the structure the qualification turns on, coding public service pensions as competence-reserved and exposure-present rather than not held: competence sits with the UK, while UK-set employer contribution increases pass into Welsh health and local government budgets. Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) maps where Welsh competence is narrower than Scotland's, naming the Schedule 7A reservations covering parts of transport and electricity and the Schedule 7B restrictions on drafting. The published corpus therefore already contained material that narrowed the practical scope of the claim made in Section 9.3 before any of the evidence assessed in this note was considered.

Proposition 7. Welsh institutional maturity is incomplete if it concentrates capability at the Cardiff level while local government capacity weakens.

Framework basis: Section 3.6.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026) documents the mechanism by which that weakening occurs without any Welsh decision: the funded Local Government Pension Scheme is administered by Welsh pension funds with employer and deficit contributions falling on Welsh local authorities, while UK-set employer contribution increases on the unfunded schemes pass into Welsh local government budgets. Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) treats local authorities as the operative site of coordinating machinery rather than as its recipients, since the Scottish Act places the action plan duty on each local authority acting jointly with named partners.

Proposition 8. Welsh policy capacity in core economic, fiscal, health, education and constitutional analysis should be sufficient to brief Ministers on Welsh-specific evidence and Welsh-specific implementation choices rather than relying primarily on UK-wide analysis adapted to Welsh circumstances.

Framework basis: Section 8.1.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026) codes fiscal measurement as a dependency cell and records that the core statistical infrastructure on which Welsh fiscal analysis rests is UK-produced: PESA Wales compiled by the Wales Office from UK Government data, OBR forecasts as the baseline for Welsh planning, HMRC administering and reporting Welsh Rates of Income Tax, ONS producing the underlying economic statistics. It also records the Office for Statistics Regulation's observations on timeliness, volatility and the absence of Welsh monthly GDP statistics.

Proposition 9. Justice and policing are constitutionally mature enough to constitute a substantive question for future constitutional decision-making.

Framework basis: Section 4.3. This proposition is a synthesis. The framework's published wording lists the devolution of justice and policing to Wales, addressing the Commission on Justice in Wales recommendations, as one of three plausible questions for a substantive devolution referendum within the term. The maturity claim is an inference from that listing rather than a sentence the framework contains, and it is stated separately here so that the finding in Section 6, which concerns the route rather than the maturity, is read against what the framework actually said.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026) develops the question at length. It records that Wales is the only UK nation without devolved justice structures, that Northern Ireland's justice functions were devolved in 2010 demonstrating that phased justice devolution can be implemented within the United Kingdom, and that the Independent Commission recommended a phased approach beginning with policing, probation and youth justice, having found the evidence for change substantially outweighed the evidence for retaining current arrangements. It also carries the Commission's structural observation that within an integrated England-and-Wales justice system structured around the much larger English system, Wales will necessarily remain a relatively low priority for UK Government attention, and notes that the Welsh-interest case is substantially stronger than the mutual-benefit case.

Proposition 10. Governance competence is the foundation on which constitutional development rests. Public constitutional confidence is earned through institutional reliability and democratic trust rather than asserted through rhetoric, and governance and constitutional development are the same project rather than competing claims on attention.

Framework basis: Section 2, with Section 9.2.

Prior corpus position: Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) draws the same distinction in the legislative register, separating enacted institutional construction from constitutional claim-making: claim-making asserts what an institution should be able to do, while enacted construction shows what it has in fact done, within the competence it already has, on the public record of its own legislation.

Proposition 11. Public confidence in Welsh institutions is built through honest engagement with challenges. Performative optimism damages credibility; transparent analysis builds it.

Framework basis: Section 5.3, with Section 10.

Prior corpus position: Two papers apply the principle to themselves. Comparative Fiscal Capacity (published 16 June 2026) states that to say a requirement is well diagnosed but its design absent is not to say it is impossible, only that the work of specifying it has not yet been done, and codes evidence strength separately from direction throughout. Representing Contested Constitutional Questions

Accurately (completed May 2026, published 13 June 2026) states the register rule directly: claims should sit at the level the evidence supports, neither inflated nor hedged into vagueness, because overstatement and understatement are both failures of description.

5. Findings where the evidence adds

5.1 A stated objective without an allocated duty

The Welsh Affairs Committee found partnership working between the UK Government, its agencies and the Welsh Government to be generally positive and in some cases innovative. It then found that the partnership approach too often relied on the goodwill and hard work of committed individuals rather than formal structures. Its specific instance was the Criminal Justice Board for Wales, which brings together HMPPS in Wales, the Youth Justice Board, the Home Office and the Welsh Government, and which has no statutory requirement to meet, relying instead on the continued commitment of senior leaders across criminal justice agencies in Wales and Welsh Government officials. The committee recommended that the UK Government co-author a Memorandum of Understanding placing bodies such as the Criminal Justice Board for Wales on an established footing.

The Energy Security and Net Zero Committee, examining an unrelated field, found that no mandate for the Government's 8GW community energy target exists within the National Energy System Operator, Ofgem or the network operators, and recorded Ofgem's evidence that the onus sat with Government. It observed that the roles of new bodies, including NESO and Great British Energy, and their interactions with the sector remain unclear, and that none of their objectives specifically aligns with the target. It recommended that Government immediately give Ofgem, NESO, the distribution network operators and Great British Energy clear mandates to work to the target's delivery.

The two findings have the same shape: an objective the relevant governments have stated, sustained by the disposition of the bodies involved rather than by any duty allocated to them, with the recommended remedy in each case consisting of writing the duty down. The two reports were ordered to be printed on the same day, 3 June 2026, by committees with different memberships examining different departments on inquiries begun fourteen months apart.

This bears directly on proposition 2 and adds evidence to it. Both reports describe institutional arrangements where the responsibility is stated and the capacity to discharge it is not allocated, which is the kind of institutional misalignment the framework identifies as a source of instability.

Its bearing on proposition 1 requires more care. Neither report observes durability. Both observe fragility, and both recommend a remedy they have not seen operate. What the reports supply is evidence that arrangements resting on disposition are recognised as fragile by those examining them, which is consistent with the correlational form of proposition 1 and supplies nothing to its causal form. The direction of the relationship between capability and durability is not something either report addresses, and the finding is not read as though it were.

5.2 Welsh-specific evidence has to be produced against a UK-wide default

The Welsh Affairs Committee devoted a chapter to the absence of Wales-specific justice data. Its predecessor committee recommended in 2019 that the Ministry of Justice work with the Wales Governance Centre to produce a schedule for publishing more Wales-specific data. In the absence of

routine publication, academics at the Wales Governance Centre obtained disaggregated data by annual Freedom of Information request from 2013, compiling it into an annual Factfile on which the committee and its predecessors relied for scrutiny. In October 2024 those requests were rejected as vexatious. Following a private briefing with the Department's Chief Statistician and substantial engagement between the requester, HMPPS in Wales and the Welsh Government, the rejections were overturned. The Department published its first annual Welsh Justice Data release in September 2025, and the committee records that several datasets remain accessible only by Freedom of Information request or are not collected at all.

The committee also records that when asked to explain Wales's consistently higher imprisonment rate, both the Ministry of Justice and the Executive Director of HMPPS in Wales said they were unable to do so and that more research was needed, and recommends that the two governments co-commission a joint academic review.

Proposition 8 concerns Welsh Government policy capacity, and the evidence here concerns a UK department's statistical practice, so the bearing is indirect. What it adds is an instance of the underlying pattern in a reserved field: where analysis is produced to a UK-wide default, the Welsh-specific version exists only where someone has undertaken to construct it, and its continued availability depends on that undertaking being permitted to continue. The corpus had documented the same dependency on the fiscal side. This is the same structure observed in justice, by a committee with no interest in the fiscal case.

5.3 Administrative proximity: associated strengths and observed limits

The governors of Wales's five prisons told the committee in private roundtable that education provision was an area of relative strength, and ascribed this to a more stable system in Wales in which the site of delivery was closer to those responsible for devising policy. They also praised contracting flexibility: education contracts in England are awarded across eleven regional lots, while contracting in Wales is undertaken for each prison individually. HM Chief Inspector of Prisons supported this, suggesting that the relatively higher purposeful activity scores in Wales may reflect the greater flexibility available to governors in Wales in managing those contracts. Separately, both the Chief Inspector of Probation and the responsible Minister singled out the North Wales Probation Delivery Unit, the former describing it as the strongest performing probation unit seen in that year's entire inspection programme.

This bears directly on proposition 4 and adds evidence to it. The observation is about administrative capability arising from institutional arrangement rather than from constitutional status, and it is made by practitioners and inspectors rather than by advocates, which is what makes it usable by a reader who disagrees with the framework's wider argument.

The same report constrains the inference. At the time of the inquiry not a single prison in Wales had been awarded a score of good for purposeful activity at its latest inspection, and all six Welsh Probation Delivery Units received ratings of requires improvement or inadequate. On healthcare, where commissioning sits with seven Welsh local health boards each designing provision on its own health needs assessment, the committee heard that the result was a fragmented system creating challenges for prisoners and providers alike, and it recommends an independent review considering the merits of national oversight under NHS Cymru. Proximity is therefore not uniformly associated with capability in the report's own evidence, and the finding is stated at the level the evidence supports: closeness

between delivery and policy is associated with capability in some functions and with fragmentation in others, and which of the two follows appears to depend on the function rather than on the distance.

6. Findings where the evidence qualifies

6.1 A devolved service funded by a reserved instrument with no mechanism for revision

Healthcare in Welsh prisons is delivered under devolved competence. Health is devolved to the Welsh Government, and prison healthcare in Wales is planned and delivered by the seven local health boards, each responsible for services within its catchment area, with each prison sitting inside one of them. Nothing about that arrangement requires UK Government agreement, and the framework's account of institutional capability development within current devolved powers describes it accurately.

The funding of that service is determined elsewhere. Since 2014 the UK Government has included a recurrent transfer within the Welsh block grant baseline for prisoner healthcare at HMPs Cardiff, Swansea and Usk and Prescoed, the three prisons not covered by the separate direct arrangements that HMPPS holds with HMP Berwyn and HMP Parc. The transfer is a fixed sum in the baseline. It carries no uprating provision, no review cycle, and no trigger requiring either government to revisit it. The Welsh Government may allocate the money to any devolved area, and the health boards then determine what they spend on prison healthcare from their own allocations, so the transfer does not directly constrain provision. What it does is set the level at which the reserved side of the arrangement contributes to a devolved service, and it sets it once.

The Welsh Affairs Committee documented what that has produced. The transfer has stood at £2.5m since 2014 and has never been increased. Analysis by the House of Commons Scrutiny Unit puts its value at £1.9m by 2024/25 at 2014/15 prices, and calculates that it would need to be about £3.4m to hold its original spending power. Freedom of Information responses obtained by the Wales Governance Centre put the actual cost of prisoner healthcare services across the three prisons at £7.25m in 2024/25. The committee concluded that the transfer is increasingly insufficient given a grown prisoner population and more complex needs, and recommended that the UK Government revise the formula and uprate the transfer in line with inflation to maintain it in real terms.

The mechanism is what matters here rather than the shortfall. A sum fixed in nominal terms at a competence boundary, with no party under an obligation to reconsider it, declines in real value without any decision being taken by anyone. No UK Government has to withdraw support and no Welsh Government has to accept a cut. The erosion is therefore a property of the instrument rather than of either government's stated intentions.

This qualifies proposition 6 as published. Section 9.3 states that the framework's institutional capability development operates within current devolved powers and is therefore robust to variation in UK Government posture. The evidence does not contradict the first half of that sentence. It bears on the inference drawn in the second. Robustness against variation in posture is not the same as robustness against the absence of variation, and a fixed instrument requires no posture at all to produce a changing outcome. The published claim reaches further than the evidence now allows, and should be read as holding for whether devolved capability can be exercised rather than for the terms on which it is resourced.

The corpus already coded this structure in the pensions context, where competence is reserved while UK-set employer contribution increases pass into Welsh health and local government budgets. What the committee supplies is the same relationship observed in a different service, with the arithmetic published by Parliament.

6.2 An incremental transfer paced by conditions outside devolved control

Proposition 5 distinguishes incremental devolution of specific powers, achievable on a Senedd-term timescale and governed by political opportunity and intergovernmental relations, from constitutional-status change on a five to fifteen year horizon governed by demonstrated Welsh institutional and governance capacity. Justice and policing is named at 4.3 among the plausible questions for a substantive devolution referendum within the term.

Two things in HC 137 bear on this, and they are not of equal weight.

The smaller concerns route. The committee is persuaded there is merit in testing and exploring the benefits of a devolved approach to probation and youth justice, and records that this aligns with the Thomas Commission in 2019, the Independent Commission in 2024 and the Brown Commission in 2022, as well as with a UK Government manifesto commitment. The instrument actually in motion is not a referendum but an agreement between the two governments on youth justice and probation reached in March 2026, with a Memorandum of Understanding to follow. This qualifies the illustration at 4.3 rather than the proposition, and it does so within what the framework already provided for, since 4.3 states that referendum is one tool among several rather than the default route and that the choice between legislative and referendum routes should be made on the merits of the specific question. The underlying maturity claim in proposition 9 is therefore reached and is consistent with the evidence assessed here. The qualification concerns the route by which that maturity is presently being acted upon rather than the proposition itself.

The larger concerns pacing, and it is not anticipated by the framework. The committee accepted the UK Government's argument that the prisons system must stabilise before any systemic changes are introduced, while holding that exploring devolution was a manifesto commitment that cannot be delayed indefinitely, and recommending that the UK Government publish a checklist of measures and steps with timelines against which a final decision could be reached. The Minister's evidence was that capacity had to be sorted out and the system stabilised first. The Independent Sentencing Review recorded that capacity pressures had brought the prison system dangerously close to collapse in the summer of 2024.

The constraint that is presently binding on this transfer is therefore the operational condition of the reserved system, not the readiness of Welsh institutions to receive the function. Proposition 5 accounts for incremental transfers as governed by political opportunity and intergovernmental relations, and treats demonstrated capacity as the condition attaching to the longer horizon. The evidence indicates a third dependency operating on the shorter one: an incremental transfer can be paced by the state of the institution transferring it, on grounds that have nothing to do with the receiving institution and that further Welsh institutional development alone could not relieve.

That is a qualification of scope rather than of direction. The two-timeline distinction holds; what it does not carry is any account of dependencies that run from the reserved side, and this instance shows one operating.

7. Propositions not reached by the evidence

Four of the eleven propositions either are not reached by the evidence assessed or are reached without any effect on their coding. Recording both outcomes is part of the assessment rather than a residue of it. An evidence base selected for relevance would return a finding on everything, and this one does not.

Proposition 3, on institutional assumptions formed under the conferred-powers settlement persisting beyond the transition to reserved powers, is not reached by either source. Neither committee had occasion to examine how the devolution boundary is conceived as such. HC 137 comes closest, recording evidence that Ministry of Justice initiatives tend to be produced without consideration of the specificities of the Welsh devolved context, and that London-based officials are often oblivious to the impact made by devolution. That is evidence about attention rather than about a persisting constitutional conception, and reading it as the latter would require an inference the source does not support. The proposition is a scholarly characterisation the framework adopts from Evans, and testing it would need a different kind of evidence than a select committee inquiry produces.

Proposition 7, on Welsh institutional maturity being incomplete if capability concentrates at the Cardiff level while local government capacity weakens, is reached but without effect. HC 229 contains substantial material on local authority capacity: wide variation in how much weight authorities give to community energy, budget restrictions and short-term funding, local plans relying on obsolete assumptions, planners with limited energy knowledge, and what the committee twice describes as a postcode lottery in both planning approaches and engagement with local area energy plans. The bearing is indirect and no effect is coded, because the committee is describing local government across Great Britain and its Welsh-specific local content is thin. Proposition 7 concerns the relationship between two Welsh levels of government, and evidence about local authority capacity in general establishes nothing about that relationship. The material is recorded here rather than in Section 5 because its apparent relevance is the reason it needs explaining.

Proposition 10, on governance competence as the foundation for constitutional confidence, is not reached. HC 137 documents governance performance at length, but in a reserved service, and neither report addresses the relationship between how well government performs and what constitutional confidence follows from it.

Proposition 11, on honest published analysis building public confidence and performative optimism damaging it, is not reached. Both reports contain material about publication practice, and 5.2 draws on some of it. But the proposition is a claim about the effect of analytical honesty on public confidence, and neither report measures public confidence in anything.

8. Consequences for the supporting papers

This section is reached only after the findings are fixed. It asks a different question from Sections 5 to 7: not what the evidence does to a proposition, but whether anything follows for the published papers in which related analysis appears. Recording a qualification and revising a paper are separate acts, and the second does not follow automatically from the first.

Constructing Coordinating Machinery requires no amendment. Section 5.1 sets out a second instance of the institutional pattern the paper describes, arising in energy rather than in economic development and observed by a committee with no knowledge of the paper. That reinforces confidence

in what the paper claims without bearing on the claim itself, which concerns what enacted construction demonstrates about an institution rather than how often the pattern recurs. A worked example arriving from an unrelated field is a reason to note the paper's reach, not to reopen it.

Wales-Westminster Constitutional Development requires no amendment. Its account of intergovernmental machinery as too informal and too dependent on ministerial goodwill now has independent parliamentary evidence behind it, and its justice section did not anticipate the pacing constraint identified at 6.2. Neither is a defect in what the paper says. The findings enlarge the evidential base available to future work in this area but do not require amendment of the published analysis.

Comparative Fiscal Capacity requires no amendment, and carries forward an open analytical question. The paper codes public service pensions as competence-reserved and exposure-present: a reserved decision, in the form of a UK-set increase in employer contributions, transmits a cost into devolved budgets. The prison healthcare finding at 6.1 behaves differently. There is no reserved decision transmitting anything. A sum was fixed once, in 2014, and the divergence between it and the cost of the service has been produced by time acting on an instrument that no party is obliged to revisit. The first mechanism is cost transmission across a competence boundary; the second is erosion within one. Both arise because competence is divided, and they are not the same thing. Whether the second is best understood as a further instance of an existing dependency category or as a distinct class of constitutional fiscal dependency is a question for future fiscal work, and it is recorded here rather than answered, because folding prison healthcare into the pensions cell as another example would collapse a distinction the evidence appears to support.

None of the findings in this note requires amendment of the published framework. Where qualifications have been identified, they concern the scope within which particular propositions should be read against the evidence presently available rather than revisions to the published framework.

9. Limits

Four limits bear on how the findings should be read.

The evidence base is not a survey. As Section 2 records, these two sources are the material that came to hand between June and July 2026. No search was conducted for evidence that would tell against the framework's propositions, and the note does not claim to have looked for any. Its purpose is to record the effect of subsequent evidence as it arose. A different selection would produce a different set of findings, and nothing here establishes that the sources assessed are representative of what has been published since May 2026.

Both sources are select committee reports, with the properties that implies. Committees take evidence from those who submit it and from those they invite. HC 137 records twenty-nine written submissions; HC 229 records more than a hundred and sixty. Both draw heavily on witnesses with an interest in the subject, and both report findings shaped by the questions the committee chose to ask. That is not a criticism of either report. It means their findings are evidence of what the committee heard and concluded. That is a narrower claim than evidence establishing what is the case, and the note does not treat committee conclusions as settled fact.

HC 137 predates the current Welsh Government. The committee concluded its inquiry before the Senedd election of 7 May 2026, and its references to Welsh Government evidence and strategy relate to the predecessor administration. Any finding that depends on the disposition of a Welsh Government rather than on institutional structure is therefore a finding about a government that is no longer in office.

The findings are two findings, not a pattern. Section 5.1 rests on two committee reports and Section 6.1 on a single funding instrument in a single service. Two instances of a structure are enough to show that the structure is not unique to one field; they are not enough to establish how common it is. Where the note says a pattern appears again, that is a statement about two observations, and the phrase should not be read as a claim about frequency.

Appendix A: proposition matrix

Each proposition is recorded with its prior corpus position, which attaches to the proposition rather than to any source, followed by the coding of both sources against it. Both sources were produced independently of the framework. The vocabulary is controlled: no term appears in the matrix that is not defined here.

Bearing. Direct: the source addresses the proposition. Indirect: the source addresses something adjacent from which the proposition can be reached. None: the source does not reach the proposition.

Effect. Consistent with: the source independently reproduces or supports the proposition. Adds: the source supplies a new observed instance of a mechanism the proposition identifies. Qualifies: the source identifies a boundary to the proposition as published. No effect: the source reaches the proposition but changes nothing about its coding. Not reached: the source does not bear on the proposition.

Proposition 1. Constitutional durability follows institutional capability rather than preceding it.

Prior corpus position: Constructing Coordinating Machinery (completed May 2026, published 13 June 2026) supports the correlational form and expressly rejects the causal form.

Source	Bearing	Effect
HC 137	Indirect	Consistent with
HC 229	Indirect	Consistent with

Note: both reports observe fragility where formal structure is absent. Neither observes durability, and neither bears on the direction of the relationship. See 5.1.

Proposition 2. Welsh constitutional instability since 1999 has arisen because constitutional change repeatedly outran the institutional capacity needed to make it work.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	Direct	Adds
HC 229	Direct	Adds

Note: see 5.1.

Proposition 3. Institutional assumptions formed under the conferred-powers settlement have persisted beyond the transition to reserved powers.

Prior corpus position: none identified in the published supporting papers.

Source	Bearing	Effect
HC 137	None	Not reached
HC 229	None	Not reached

Note: see 7. The passage in HC 137 on departmental obliviousness to devolution is evidence about attention rather than about a persisting constitutional conception.

Proposition 4. Capability that exists serves Wales whatever the constitutional outcome; capability that does not exist would constrain Wales’s options regardless of public preference.

Prior corpus position: Constructing Coordinating Machinery (completed May 2026, published 13 June 2026); Comparative Fiscal Capacity (published 16 June 2026).

Source	Bearing	Effect
HC 137	Direct	Adds
HC 229	Indirect	No effect

Note: HC 229 documents extensive capacity shortfalls, but they are the capacity of community energy organisations rather than of Welsh institutions, so the material does not reach a proposition about institutional capability.

Proposition 5. Two timelines operate: incremental power transfers on a Senedd-term timescale, constitutional-status change on a five to fifteen year horizon.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	Direct	Qualifies
HC 229	None	Not reached

Note: the qualification at 6.2 rests on HC 137 alone.

Proposition 6. Institutional capability can be developed largely within existing devolved competence, although the effectiveness of that capability may remain dependent upon reserved funding or institutional arrangements.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026); Constructing Coordinating Machinery (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	Direct	Qualifies
HC 229	Indirect	Consistent with

Note: HC 229 describes the same structure, devolved planning competence operating inside a reserved energy regime, but across Great Britain rather than in Wales specifically, so it is coded Consistent with rather than Adds.

Proposition 7. Welsh institutional maturity is incomplete if capability concentrates at the Cardiff level while local government capacity weakens.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026); Constructing Coordinating Machinery (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	Indirect	No effect
HC 229	Indirect	No effect

Note: both reports document strain on local authorities, HC 137 on housing and resettlement and HC 229 on planning and energy capacity. Neither addresses the relationship between Welsh central and Welsh local capability, which is what the proposition concerns. See 7.

Proposition 8. Welsh policy capacity should be sufficient to brief on Welsh-specific evidence rather than relying primarily on UK-wide analysis adapted to Welsh circumstances.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026).

Source	Bearing	Effect
HC 137	Indirect	Adds
HC 229	None	Not reached

Note: the bearing is Indirect because the proposition concerns Welsh Government analytical capacity while the evidence concerns a UK department’s statistical practice. The effect is Adds because the structure observed is the same one the corpus documented on the fiscal side. See 5.2.

Proposition 9. Justice and policing are constitutionally mature enough to constitute a substantive question for future constitutional decision-making.

Prior corpus position: Wales-Westminster Constitutional Development (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	Direct	Consistent with
HC 229	None	Not reached

Note: the qualifications at 6.2 attach to the route and to the pacing of a transfer, not to the maturity claim, which is why HC 137 is coded Consistent with rather than Qualifies.

Proposition 10. Governance competence is the foundation on which constitutional development rests.

Prior corpus position: Constructing Coordinating Machinery (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	None	Not reached
HC 229	None	Not reached

Note: HC 137 documents governance performance extensively, but in a reserved service, and the proposition concerns what constitutional confidence follows from governance performance, which no source addresses. See 7.

Proposition 11. Public confidence in Welsh institutions is built through honest engagement with challenges.

Prior corpus position: Comparative Fiscal Capacity (published 16 June 2026); Representing Contested Constitutional Questions Accurately (completed May 2026, published 13 June 2026).

Source	Bearing	Effect
HC 137	None	Not reached
HC 229	None	Not reached

Note: both reports address publication practice, and 5.2 draws on some of it, but the proposition is a claim about the effect of analytical honesty on public confidence and no source measures public confidence.